

[5 EDW. 7.] *Metropolitan Electric Supply Company* [Ch. cxlvi.]
(*Acton District*) Act, 1905.



CHAPTER cxlvi.

An Act to authorise agreements between the Metropolitan Electric Supply Company Limited and the Acton Urban District Council with respect to the supply of electrical energy by the Company to the district council and to confer further powers on the Company.

A.D. 1905.

[4th August 1905.]

WHEREAS the Metropolitan Electric Supply Company Limited (hereinafter called "the Company") are established for the objects (inter alia) of the construction contracting for establishment and carrying on of works machinery and apparatus for lighting by electricity and the production transmission storage and use by any means and for any purpose of light and heat and electric force:

And whereas the Company had certain undertakings under the Electric Lighting Act 1882 authorised by special Act and Provisional Orders confirmed by Act of Parliament within the administrative county of London:

45 & 46 Vict.
c. 56.

And whereas the Company in the year one thousand eight hundred and ninety-seven purchased for the objects stated in their memorandum of association and in accordance with the powers thereof certain lands partly in the parish and urban district of Willesden and partly in the parish and urban district of Acton and by the Metropolitan Electric Supply Company Act 1898 statutory authority was conferred upon the Company to establish and work on the said lands plant for generating electrical energy and for other purposes incidental to or connected with their undertaking or business and by section 16 of

[Ch. cxlvi.] *Metropolitan Electric Supply Company* [5 EDW. 7.]
(*Acton District*) Act, 1905.

A.D. 1905. — the said Act it was provided that it should be lawful for the Company to use their generating station on the said lands for the purpose of supplying electric current or electrical energy within the several areas or districts in which the Company were or might thereafter be authorised to supply electrical energy under special Act or Provisional Order and the Company have duly established and equipped the said station and have in further exercise of their powers under their memorandum of association purchased other lands in the said parish and district of Acton for the purpose of extending their generating stations and works :

1 Edw. 7.
c. cxxxvii.

And whereas by the Electric Lighting Order Confirmation (No. 1) Act 1901 it was provided that the Company should sell and the council of the metropolitan borough of Saint Marylebone should purchase the Saint Marylebone undertaking and business of the Company as defined in the said Act except as therein provided :

And whereas owing to the compulsory purchase of the said Saint Marylebone undertaking and business of the Company the Company have at their said station and elsewhere accommodation machinery and plant no longer required for the production of energy for the purposes of the said undertaking :

And whereas the Company entered into an agreement with the council for the urban district of Acton in the county of Middlesex (in which district the said station of the Company is partly situate) with respect to a supply of energy by the Company to the council and with respect to certain matters incidental thereto :

. And whereas doubts have arisen as to the power of the Company to carry the said agreement into effect and it is expedient that power should be conferred on the Company for entering into and carrying into effect agreements with respect to such supply :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal

and Commons in this present Parliament assembled and by the authority of the same as follows:— A.D. 1905.

1. This Act may be cited as the Metropolitan Electric Supply Company (Acton District) Act 1905. Short title.

2. It shall be lawful for the Company to enter into and carry into effect agreements with the Acton Urban District Council with respect to the supply of energy by the Company to the said council in the urban district of Acton and for any purposes for which the said council may have power to use or supply such energy and with respect to the following matters:— Power to enter into agreements.

The erection and provision of plant and machinery for the production of electrical energy ;

The laying of mains cables and wires by the said council and the Company respectively ;

Fixing and defining the amount and character of current to be supplied by the Company to the said council ;

The measurement of and payments to be made in respect of supply of energy by the Company to the said council ;

The control and management of works instruments and meters to be provided by the Company ;

The opening of streets roads and footpaths for the purpose of laying mains and wires ;

Any subjects and matters incidental to the supply of energy to the said council :

And for the purpose of enabling the Company to carry into effect any such agreement it shall be lawful for the Company to use all or any of their stations lands mains and apparatus :

Provided that nothing in this Act shall empower the Company without the consent in writing of the Willesden Urban District Council to open break up or interfere with any street road or footpath within the urban district of Willesden :

Provided further that the powers conferred by this section so far as they relate to or affect any main road or county bridge in the county of Middlesex shall only be exercised by the Company or the Acton Urban District Council as the case may be subject to and in accordance with the provisions of the Acton Electric Lighting Order 1891 scheduled to and confirmed by the Electric

[Ch. cxlvi.] *Metropolitan Electric Supply Company*, [5 EDW. 7.]
(*Acton District*) Act, 1905.

A.D. 1905. Lighting Orders Confirmation (No. 4) Act 1891 and if and so far as such powers may be exercised by the Company the expression "the Undertakers" when used in that Order shall for the purposes of this enactment be deemed to mean "the Company":

Provided also that the exercise of the powers conferred by this section shall be subject in all respects to the provisions for the protection of the telegraphic lines of the Postmaster-General which are contained in the Acts and Orders relating to the undertaking of the Company.

For protection of
Metropolitan
Water
Board.

3. In exercising any powers under this Act affecting any mains pipes or works of the Metropolitan Water Board (hereinafter referred to as "the board") the provisions of the said Acton Electric Lighting Order 1891 with reference to works affecting mains pipes or works of a water company shall extend and apply to the board and in addition the following provisions shall have effect unless otherwise agreed between the board and the Company (that is to say):—

(1) Where the Company require to dig or sink any trench for laying down or constructing any electric line under the powers of this Act within six feet of any main of the board they shall seven days before commencing such works deliver to the board plans and sections thereof and if it shall appear to the board that such works will interfere with or endanger or prevent proper access to such main or impede the supply of water by means thereof the board may within seven days after the receipt of such plans and sections give notice to the Company to lower or otherwise alter the position of or to support or lay or place cement or concrete under such main (in this section referred to as "protective works") in such manner as may be considered necessary and may be specified in such notice and any difference as to the necessity for the protective works shall be settled by arbitration:

(2) If the Company shall not dispute such necessity or if the arbitrator determine that the protective works are necessary the same shall subject as hereinafter provided be executed in accordance with the requirement of the board or the decision of the arbitrator as the case may be:

(3) If the board at the time of giving such notice as
aforesaid to the Company express their desire them-
selves to execute any protective works which they
desire executed or which may be decided to be
necessary as the case may be they may by their own
engineer and workmen execute the same and in that
event shall do so with all reasonable despatch and
the Company shall on the completion thereof pay
to the board the reasonable expenses incurred by
them in such execution Provided that if the board
fail to execute such protective works with all reason-
able despatch after request in writing from the Com-
pany so to do the same may notwithstanding such
notice be executed by the Company :

A.D. 1905.
—1—

(4) If any interruption in the supply of water by the board
shall without their written authority be in any way
occasioned by the Company or by the act or acts of
any of their contractors agents workmen or servants
or any person in the employ of them or any or either
of them the Company shall forfeit and pay to the
board for the use and benefit of the board a sum not
exceeding ten pounds for every hour during which
such interruption shall continue :

(5) The expense of all repairs or renewals of any apparatus
of the board or any works in connection therewith
which may at any time hereafter be rendered necessary
by reason of any subsidence resulting from the works
of the Company whether during the construction of
the works or at any time thereafter shall be borne
and paid by the Company.

4. The Company shall deliver to the Registrar of Joint
Stock Companies a printed copy of this Act and he shall retain
and register the same and if such copy is not so delivered
within three months from the passing of this Act the Company
shall incur a penalty not exceeding two pounds for every day
after the expiration of those three months during which the
default continues and any director or manager of the Company
who knowingly and wilfully authorises such default shall incur
the like penalty Every penalty under this section shall be
recoverable summarily.

Copy of Act
to be regis-
tered.

[Ch. cxlvi.] *Metropolitan Electric Supply Company* [5 EDW. 7.]
(*Acton District*) Act, 1905.

A.D. 1905.

There shall be paid to the Registrar by the Company on such copy being registered the like fee as is for the time being payable under the Companies Act 1862 on registration of any document other than a memorandum of association.

Costs of Act.

5. All costs charges expenses and liabilities of and preliminary to and incidental to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be borne and paid by the Company.

Printed by EYRE and SPOTTISWOODE,

FOR

ROWLAND BAILEY, Esq., M.V.O., I.S.O., the King's Printer of Acts of Parliament

And to be purchased, either directly or through any Bookseller, from
WYMAN AND SONS, LTD., FETTER LANE, E.C.; or
OLIVER AND BOYD, EDINBURGH; or
E. PONSONBY, 118, GRAFTON STREET, DUBLIN.